

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: September 8, 2026 TIME: 9:00 A.M. and 9:01 A.M.

To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
LINE 1	21CV391687	Oswald Campeato vs JiaHua Huang et al	Motion for Attorney's Fees and Cost Scroll down to Line 1 for Tentative Ruling.
LINE 2	24CV430173	Lee (aka Lit) Leong vs Ashley A. Lopez	Motion for Sanctions OFF CALENDAR. On March 26, 2026 the parties notified the court of a settlement agreement and moving party withdrew motions.
LINES 3-4	24CV431877	Robert Hayter, II vs Bella Nguyen	Motion to Compel Response to Form Interrogatories (Line # 3) and Motion to Compel Responses to Request for Production of Documents (Line #4); Sanctions Scroll down to Lines 3-4 for Tentative Ruling.
LINE 5	24CV448600	Ian Anderson vs Wells Fargo Bank	Petition to Compel Arbitration Scroll down to Line 5 for Tentative Ruling.
LINE 6	24CV449214	Quynh Tran vs City of San Jose	Motion for Summary Judgment/Adjudication Scroll down to Line 6 for Tentative Ruling.
LINE 7	24CV452024	Danielle Stanton vs Mehus Construction, Inc.	Motion to Compel Further Responses to Request for Production; Sanctions Scroll down to Line 7 for Tentative Ruling.
LINE 8	25CV467501	Juvenal Plancarte vs General Motors	Motion to Compel Deposition Under Code of Civil Procedure 871.26; Sanctions Scroll down to Line 8 for Tentative Ruling.
LINE 9	25CV482065	Theresa Perry vs Emergency Housing Consortium et al	Motion to Strike Fraudulent Attorney's Lien and Compel Settlement Disbursement Scroll down to Line 9 for Tentative Ruling.
LINE 10	26CV497702	Baoxin Ling vs Miro Holdings, LLC dba Topi Cake	Petition For Writ of Mandate This petition is CONTINUED to September 10, 9:00 a.m. in Department 1.

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LAW AND MOTION TENTATIVE RULINGS

9:01 A.M.			
<u>LINE 1</u>	21CV391687	Oswald Campesato vs Jiahua Huang et al	Hearing: Claim of Exemption Parties to appear.

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9:00 A.M.

Calendar Line # 1

Case Name Oswald Campesato vs JiaHua Huang et al

Case No. 21CV391687

Motion for Attorney's Fees and Cost

I. BACKGROUND

A. BRIEF FACTUAL BACKGROUND

This case arises from a wrongful eviction action by tenant/Plaintiff Oswald Capesato ("Capesato") against landlord/Defendants JiaHua Huang and Jane Wang (collectively "Defendants"). Plaintiff Capesato filed a Complaint against the Defendants on November 24, 2021, which included nine causes of actions, including allegations of wrongful evidence, nuisance, negligence, and sexual harassment. (Compliant). Defendants filed a cross-complaint for damages and defamation against the plaintiff. (Cross-Compliant and Amended Cross-Complaint). On or around February 27, 2024, a default judgment was entered against the defendants and in favor of the plaintiff in the amount of \$458,875.03. On August 20, 2024, the Honorable Eric Geffon set aside the defaults.

In September 2025, parties executed a binding written settlement agreement disposing of all claims at a mandatory resettlement conference. On October 22, 2025, a stipulation for an entry of judgment was filed in the amount of \$50,000.00 that was filed on December 23, 2025, and authorized by the Honorable Deen and filed January 8, 2026.

B. RELEVANT PROCEDURAL BACKGROUND

On January 12, 2026, an abstract of judgment was recorded, which created a judgment lien against the real property, a residence located at 10197 Finch Avenue, Cupertino, California, 95014. ("Subject Property"). On February 17, 2026, the plaintiff filed a writ of execution of the money judgment by sale of real property, the residence located at 10197 Finch Avenue, Cupertino, California, 95014. On or around May 11, 2026, the Santa Clara County Sheriff's levied upon the Subject Property.

On June 18, 2026, parties appeared for the hearing on the claim of exemption, which the Court posted a tentative order finding that the Order for Claim of Exemption is limited to \$746,640.00 and the plaintiff is allowed to proceed with the levy.

C. PRESENT MOTION

Before the Court is Plaintiff's post judgment motion for attorney's fees and cost that was filed on June 12, 2026. The motion was accompanied by a proof of service indicating mail service to Defendants.

On August 27, 2026, Defendants filed an "Amended Response and Request to Vacate Motions, Levy, and Sale Proceedings," which the Court will consider Defendants' opposition to Plaintiff's motion.

The Court has carefully reviewed the Plaintiff's notice of motion and memorandum of points and authorities ("MPA") (totaling 6 pages); Declaration of Brian D. Liddicoat and attached Exhibits A-C in support of the moving papers (totaling 8 pages); 06/12/2026 Memorandum of Costs (totaling 6 pages); 08/31/2026 Memorandum of Costs (totaling 2 pages); Defendant's Response (totaling 7 pages); proofs of services; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure, section 685.070, subdivision (a): "The judgment creditor may claim under this section the following costs of enforcing a judgment: . . . (6) Attorney's fees, if allowed by Section 685.040." Code of Civil Procedure section 685.040 provides that a "judgment creditor is entitled to the reasonable and necessary